

§ 658. Consideration of blindness during guardianship, custody or visitation proceedings. 1. The court may not deny or decide a petition for custody or visitation under this part or guardianship under part four of this article solely on the basis that the petitioner is blind. The blindness of the petitioner shall be considered relevant only to the extent that the court finds, based on evidence in the record, that the blindness affects the best interests of the child whose guardianship, custody or visitation is the subject of the petition.

2. As used in this section, "blind" or "blindness" means:

- a. vision that is 20/200 or less in the best corrected eye; or
- b. vision that subtends an angle of not greater than twenty degrees in the best corrected eye.